

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Samsung Electronics America, Inc.,	)	
	)	
Complainant	)	
	)	
v.	)	DOCKET NO. 26-12
	)	
CMA CGM S.A.	)	
	)	
Respondent	)	
	)	

VERIFIED ANSWER OF RESPONDENT
CMA CGM S.A. TO COMPLAINT

Respondent CMA CGM S.A. (“Respondent” or “CMA CGM”) hereby answers the complaint in this proceeding (“Complaint”) as follows.

INTRODUCTORY STATEMENT AND GENERAL DENIAL

Samsung Electronics America, Inc. has commenced this proceeding as part of its continued and misguided campaign to blame CMA CGM (and other ocean carriers) for the challenging conditions during and in the wake of the COVID 19 pandemic. Unburdened by the facts and untethered to the law, Samsung seeks to distract from its own failings by alleging that CMA CGM should bear responsibility for costs that Samsung and its affiliates explicitly agreed to in contracts that they negotiated and knowingly signed and/or which resulted from the acts/omissions of SEA and its agents. Samsung’s Complaint fails to identify with the particularity required by the Commission’s jurisprudence precisely what containers are at issue, why CMA CGM should be responsible for specific costs under the facts and circumstances existing at the time, and seeks damages that are improper on their face. When the dust settles it will become abundantly clear that Samsung’s revenues during the relevant timeframe increased massively, that it profited

handsomely from supplying its products to the American consumer during the Covid 19 pandemic, but that it was unprepared for the substantial growth and lacked the capabilities to handle and receive the increased volumes it elected to import, causing alleged losses it now seeks to recover from CMA CGM and other ocean carriers. Neither the Shipping Act nor the relevant contractual provisions allow Samsung to shift responsibility in this manner. CMA CGM abided by the contractual provisions and the Shipping Act, acted reasonably, but now finds itself - like other ocean carriers - the subject of Samsung's unjustifiable and unsupportable financial demands.

CMA CGM has attempted to respond to Samsung's complaint which is replete with quotations that have no sources identified; thereby casting doubt on their accuracy and content. The Complainant's lack of precision imposes an undue burden upon CMA CGM to answer within the rules governing pleadings.

To illustrate some of the deficiencies in the Complaint, CMA CGM cites to some of those paragraphs in the Complaint that purport to provide examples illustrating the alleged conduct (e.g., Paragraphs 51 and 66 through 71). In some instances, the paragraphs in question fail to identify the containers at issue, making investigation of the allegations difficult. Investigation is difficult even when container numbers are supplied because one container can be used for multiple shipments during any given period of time. To further illustrate the difficulty, CMA CGM has identified instances in which the same container was used for different shipments consigned to SEA.

In addition to the foregoing deficiencies, some of the categories of damages sought by Complainant are improper on their face, such as costs for off-dock container yard space (paragraph 99(b)). While off-dock storage is generally less expensive than on-dock storage, the only plausible explanation as to why a consignee or receiver of cargo would need to choose between the two

forms of storage is if it was unable or unwilling to take delivery of the cargo. CMA CGM responds further as follows.

I. COMPLAINANT

1. CMA CGM lacks sufficient information to admit or deny the allegations in this paragraph.

II. RESPONDENT

2. Admit.

3. Admit.

4. Admit.

5. Admit.

III. JURISDICTION

6. Deny that the FMC has subject matter jurisdiction over any claim relating to charges imposed by railroads or other third parties, or over the claim asserted in Count I of the Complaint (U.S.C. § 41102(c)), as it is a claim for breach of contract, for which exclusive jurisdiction rests in the federal courts under 28 U.S.C. § 1333, and the Shipping Act. Admit the remaining allegations of Count 6 of the Complaint.

7. The Complaint speaks for itself, and no response is required to this characterization of the relief sought therein. To the extent that a response to this allegation is required, denied.

8. Denied.

IV. PRELIMINARY STATEMENT

9. CMA CGM lacks sufficient information to admit or deny the allegations in this paragraph.

10. CMA CGM lacks sufficient information to admit or deny the allegations in this paragraph.

11. CMA CGM lacks sufficient information to admit or deny the allegations in this paragraph.

12. CMA CGM lacks sufficient information to admit or deny the allegations in this paragraph.

13. Admit to the extent that CMA CGM provides a full range of services which include inland transportation. Except as specifically admitted, CMA CGM lacks sufficient information to admit or deny the remaining allegations in this paragraph.

14. Admit to the extent that CMA CGM provides a full range of services. Except as specifically admitted, denied that store door terms are properly characterized by Samsung Electronics America, Inc. (“SEA”) in this paragraph. The terms of store door carriage are subject to modification by the terms of service contracts, bills of lading, and/or other arrangements.

15. Admit to the extent that SEA partially describes the manner in which CMA CGM markets its services. Except as specifically admitted, CMA CGM denies each and every other allegation of this paragraph.

16. Admit to the extent this paragraph accurately quotes CMA CGM’s website. Except as specifically admitted, CMA CGM lacks sufficient information to admit or deny the remaining allegations in this paragraph.

17. Admit that the second sentence accurately quotes CMA CGM’s website. Except as specifically admitted, CMA CGM denies each and every other allegation of this paragraph.

18. Admit this paragraph accurately quotes CMA CGM's website. Except as specifically admitted, CMA CGM lacks sufficient information to admit or deny the remaining allegations in this paragraph.

19. Denied.

20. Denied.

21. Denied.

22. Denied.

23. Denied.

24. Denied.

25. Denied.

26. Denied.

27. Denied.

28. CMA CGM lacks sufficient information to admit or deny the allegations in this paragraph.

29. Denied.

V. FACTUAL ALLEGATIONS

30. Admit.

31. CMA CGM denies that SEA's definition of "store door" terms was agreed between the parties, but, except as so specifically denied, CMA CGM admits the remaining allegations in this paragraph.

32. Admit to the extent that CMA CGM and one or more affiliates of SEA, as shippers, agreed to service contracts (the "Service Contracts") containing the terms for the carriage of cargo from overseas locations to U.S. inland locations wherein SEA was the consignee and party bound

by the terms of the Service Contracts. Except as specifically admitted, CMA CGM denies each and every other allegation of this paragraph.

33. Admit that under “CY” or “port-to-port” bills of lading and sea waybills, the shipper or consignee generally is responsible for movement of the cargo beyond the port of discharge.

34. Denied.

35. Denied.

36. Denied.

37. Denied.

38. Admit that CMA CGM, during periods of time subsequent to January 2020, transported SEA containers from various overseas locations, through numerous U.S. ports, to numerous U.S. inland locations. Except as specifically admitted, CMA CGM denies each and every other allegation of this paragraph.

39. Denied.

40. Admit that CMA CGM has invoiced SEA for demurrage and detention charges in accordance with the terms of the Service Contracts. Except as specifically admitted, CMA CGM lacks sufficient information to admit or deny the remaining allegations in this paragraph.

41. Denied.

42. Denied.

43. Admit to the extent that CMA requested payment for demurrage and detention charges that were due and owing by SEA under the terms of the Service Contracts, CMA’s bills of lading, and/or CMA’s tariff. Except as specifically admitted, CMA CGM denies each and every other allegation of this paragraph.

44. Denied.

45. Denied.

46. Denied.

47. Denied.

48. Denied.

49. Denied.

50. Denied.

51. With respect to the first sentence, admit CMA CGM transported SEA cargo in container TLLU4331744, but deny that container is an illustrative example of alleged conduct. Admit second and third sentences. Deny each and every remaining allegation of this paragraph.

52. Admit that CMA CGM arranged for inland transportation of some SEA Containers via railroads. Except as specifically admitted, CMA CGM denies each and every other allegation of this paragraph.

53. CMA CGM lacks sufficient information to admit or deny the allegations of this paragraph.

54. Admit.

55. This paragraph states a legal conclusion and requires no response. To the extent a response is required, denied.

56. Admit that CMA CGM's obligations to railroads are subject to the terms and conditions of the respective railroad's Circular. Except as specifically admitted, CMA CGM denies each and every other allegation of this paragraph.

57. Admit.

58. Denied.

59. Denied.

60. Admit that rail storage charges generally commence two days after the arrival of the containers at the rail facility. Except as specifically admitted, CMA CGM denies each and every other allegation of this paragraph.

61. CMA CGM lacks sufficient information to admit or deny the allegations of this paragraph.

62. Denied.

63. Denied.

64. Denied as stated. Admit that at one time CMA CGM guaranteed payment of rail storage on behalf of SEA, but discontinued that practice. Subsequent to the discontinuation of that practice, it would not be possible to transport containers inland beyond the rail facility prior to payment of any rail storage charges due and owing on such containers.

65. Denied.

66. After due inquiry, CMA CGM lacks sufficient information to admit or deny and, accordingly, denies.

67. After due inquiry, CMA CGM lacks sufficient information to admit or deny and, accordingly, denies.

68. After due inquiry, CMA CGM lacks sufficient information to admit or deny and, accordingly, denies.

69. After due inquiry, CMA CGM lacks sufficient information to admit or deny and, accordingly, denies.

70. Denied.

71. Denied.

72. Denied.

73. Denied.

74. Denied.

75. Denied.

76. With respect to the first sentence, admit receipt of the Demand Letter but deny the Demand Letter's characterization of CMA CGM's conduct. Admit the second sentence.

77. With respect to the first sentence, admit that SEA provided CMA with information regarding its allegations. Admit the second sentence. Except as specifically admitted, CMA CGM denies each and every other allegation of this paragraph.

78. Deny first sentence. The remainder of the paragraph consists of SEA's characterization of allegations made by other entities, which allegations speak for themselves and do not require a response. To the extent that a response to this allegation is required, denied.

79. Admit to the extent that this paragraph summarizes the subject matter of a compromise agreement found at the link cited in the footnote to this allegation. Denied that a settlement constitutes an admission of any statutory violation and further denied that any settlement is probative of SEA's allegations in the Complaint.

80. Denied.

VI. SHIPPING ACT VIOLATIONS

Count I

81. CMA CGM repeats and realleges Paragraphs 1 through 80 of this Answer with the same force and effect as if set forth at length herein, in response to Paragraph 81.

82. Admit.

83. Admit.

84. Admit that CMA assessed demurrage and detention on a normal, customary, and continuous basis. Except as specifically admitted, CMA CGM denies each and every other allegation of this paragraph

85. Denied.

86. Admit.

87. Admit.

88. Denied.

89. Denied.

Count II

90. CMA CGM repeats and realleges Paragraphs 1 through 89 of this Answer with the same force and effect as if set forth at length herein, in response to Paragraph 90.

91. Admit.

92. Denied.

93. Denied.

94. Denied.

95. Denied.

96. Denied.

97. Denied.

VII. CAUSATION AND INJURY TO COMPLAINANT

98. Denied.

99. Denied.

VIII. ALTERNATIVE DISPUTE RESOLUTION

100. Admit the matter could not be resolved amicably. Except as specifically admitted, CMA CGM denies each and every other allegation of this paragraph.

101. CMA CGM lacks sufficient information to admit or deny.

IX. REQUEST FOR ORAL HEARING

102. CMA CCM takes no position on SEA's request for a hearing.

X. AFFIRMATIVE DEFENSES

1. The FMC lacks subject matter jurisdiction over any claim relating to charges imposed by railroads or other third parties.
2. The FMC lacks subject matter jurisdiction over the claim asserted in Count I of the Complaint (U.S.C. § 41102(c)), as it is a claim for breach of contract, for which exclusive jurisdiction rests in the federal courts under 28 U.S.C. § 1333, and the Shipping Act.
3. Complainant has failed to plead essential elements of a claim under 46 U.S.C. Section 41102(c).
4. The FMC lacks authority to adjudicate this matter, as it would violate the Seventh Amendment.
5. The FMC lacks authority to adjudicate this matter, as it would violate the Judiciary Act of 1789.
6. The FMC lacks authority to adjudicate this matter to the extent that Complainant's claims sound in contract.
7. Complainant waived all of its claims due to its failure to use the procedures required by the FMC and maintained by CMA CGM for addressing disputes about detention, demurrage, and per diem charges.

8. Because CMA CGM maintained procedures for disputing detention, demurrage, and per diem charges and Complainant willfully declined to use them, CMA CGM's actions are *per se* reasonable.
9. Any harm experienced by Complainant was as a result of its own failures, acts or omissions.
10. Complainant has failed to state a claim for which relief can be granted, including for reasons of vagueness.
11. Complainant has not suffered any actual injury or damage as a result of Respondent's alleged violations of the Shipping Act, which are denied.
12. Complainant acted as a volunteer in making payments to non-parties without determining the validity of those claims before making payment.
13. Any delay in the return of empty equipment that resulted in charges to the Complainant was caused by Complainant and/or its agents and was the responsibility of Complainant and/or its agents.
14. To the extent that the Claims involve charges from entities other than CMA CGM, such as railroads, terminal operators, truckers, and storage facilities, CMA CGM cannot be held responsible.
15. The charges which are the subject of the Claims are barred in part by the statute of limitations.
16. The Claims are barred by the doctrine of unclean hands.
17. The Claims are barred in part by the terms of a 2023 settlement between the parties.

XI. PRAYER FOR RELIEF

WHEREFORE, Respondent CMA CGM, respectfully requests that the Complaint against the Respondent be dismissed and this proceeding be discontinued.

Respectfully submitted,

/s/ Wayne Rohde
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Kathryn Sobotta
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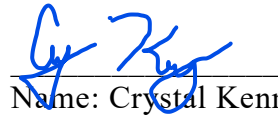
Dated: September 28, 2026

**VERIFICATION OF RESPONDENT
CMA CCM S.A.**

I, Crystal Kennedy, hereby verify as follows:

1. I am the VP and General Counsel of CMA CGM (America) LLC, the U.S. general agent of CMA CGM S.A.
2. I am authorized to make this verification on behalf of CMA CGM S.A.
3. I declare under penalty of perjury under the laws of the United States that the foregoing Answer are true and correct to the best of my knowledge, information, and belief.

Dated: September 28, 2026



Name: Crystal Kennedy

Title: VP and General Counsel

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 28th day of September, 2026, the foregoing Answer
and was served via electronic mail on:

Christopher R. Nolan (chris.nolan@hklaw.com)
Gerald A. Morrissey III (gerald.morrissey@hklaw.com)
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Counsel to Samsung Electronics America, Inc

/s/ Wayne Rohde
Wayne Rohde